

WRITTEN SUBMISSIONS · 15 JAN 1998

Written submissions — McDonald's

TYPE	DATE	PARTIES
Pleadings / procedural document	15 Jan 1998	From McDonald's France

SUMMARY SHEET

Written submissions of McDonald's France — before the Paris Commercial Court · 15 January 1998

Overview: McDonald's France's pleadings in defence responding to the claim of Mr Collorafi and his companies, and setting out McDonald's claims for orders to pay unpaid fees.

Key points

McDonald's places the dispute in its chronological context: Mr Collorafi's training from 1986 to 1987, opening of the restaurant in the Carrefour shopping arcade in Antibes in August 1987, assignment of the lease-management agreement (location-gérance) to the company SEBOL on 31 August. The document recalls the signing, on 9 October 1996, of the Antibes-Nord agreement, Mr Collorafi's requests for Antibes-Ouest and Vallauris, the refusal to finance the “straight license” agreement and the use of a BFL-type agreement. McDonald's attributes to the companies the accumulation of unpaid invoices and asks for SEBOL, B & O and Mr Collorafi to be ordered jointly and severally to pay.

- SEBOL: sum claimed of 1,867,247.84 F incl. VAT, with statutory interest.
- B & O: sum claimed of 1,535,548.87 F, with late-payment interest.
- 80,000 F under article 700 of the NCPC; capitalisation of interest (article 1154 of the Civil Code); provisional enforcement requested.

Significance

A document setting out McDonald's case and the quantification of its claims, which would lead to the judgment of the Paris Commercial Court of 18 May 1998.

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Source: bernardcollorafi.org/en/documents/written-submissions-mcdonalds-paris-commercial-court-unpaid-fees-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.